

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVMkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EUGENE SWIFT,

Petitioner

VS.

MARISSA GOLDMAN,

Respondent

) Case Number: FPT-23-378317

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY; VISITATION (PARENTING TIME) OTHER:
RECONCILIATION COUNSELING WITH MINOR CHILDREN

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 6/30/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Eugene Swift (Father) and Respondent Marissa Goldman (Mother) have two minor children together, Dominic (DOB 1/12/2014, age 12) and Ava (DOB 10/15/2018, age 7). On 9/28/2021, Sonoma County Superior Court issued a three-year domestic violence restraining order (DVRO) protecting Mother, Dominic and Ava, and Mother's child from another relationship. The Sonoma County Superior Court awarded Mother sole legal and physical custody of Dominic and Ava, with 2 weekly, professionally supervised visits of 3 hours per week for Father.
- 2) On 2/6/2026, Father filed a request for "reconciliation counseling with the minor children, so I can start having regular contact and visitation with them." He states he has not seen the children

1 for over 4 years and that he believes it is important for them to have a relationship with him. He
2 seeks joint legal and physical custody.

- 3 3) The parties attended mediation on 4/27/2026 and were unable to reach an agreement. At
4 mediation, Father requested joint legal and physical custody, asked to be listed as an emergency
5 contact on all school records and to have access to school records, and to have a two-week on,
6 two-week off parenting time schedule during the summer. Mother requested to maintain the
7 current order for sole legal and physical custody to her, and for the parties to spend every other
8 weekend with Father during the summer.
- 9 4) On 6/18/2026, Mother filed a responsive declaration setting forth the history of violence she
10 states preceded the filing of her DVRO request. She states Father never exercised his court-
11 ordered visitation rights, and that even though Mother arranged for Father to see the children
12 without supervision after he filed his request for order, he was “sporadic and inconsistent” in his
13 communications and requests and had not seen the children in a “few months.” Mother states that
14 she recently learned that Father’s “pattern of domestic violence has continued” and that he has a
15 criminal protective order against him, protecting his ex-girlfriend, that is in place until July 2028.
16 She is “also informed that [his] driver’s license is suspended for DUI until 2028, and that this is
17 not his first DUI.” Mother states that she now believes that Father’s future visits with the children
18 should be supervised.

19 **B. Findings and Orders**

- 20 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
21 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
22 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
23 children is the United States.
- 24 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 6/30/2026 in**
25 **Department 404.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERIC CHANG LAGANDAON,

Petitioner

VS.

MICHELLE MARGARET LAGANDAON,

Respondent

) Case Number: FDI-14-782621

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT,
AND REIMBURSEMENT OF CHILD SUPPORT OVERPAYMENTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Eric Lagandaon (Father) and Respondent Michelle Lagandaon (Mother) married on 7/15/2003 and separated on 10/22/2014, for a marriage of 11 years and 3 months. The parties have three children, Mya (DOB: 10/18/2003, age 22), Mason (DOB: 12/19/2008, age 17), and Myles (DOB: 6/12/2012, age 14). Both parties are self-represented.
- 2) On 4/17/20215, a Dissolution Judgment was entered which provides in relevant part:
 - a. The parties have custody of the children according to a 2-2-5 schedule.
 - b. Mother shall pay Father guideline child support of \$1,442 per month.
 - c. The parties shall share equally uninsured medical expenses and education and special needs of the children.
 - d. Mother shall pay Father \$1,102 per month in spousal support.

- 3) Now on for hearing is Mother's Request for Order filed 5/1/2026 asking to modify child support; terminate spousal support for Father; and reimburse Mother for child support overpayments for their oldest child Mya.
- 4) Per the Proof of Personal Service filed 6/17/2026, Father was personally served with Mother's Request for Order, the Tentative Ruling Instructions, and other moving papers on 6/16/2026.
- 5) On 6/24/2026, Father filed a Declaration stating that on 6/17/2026 paperwork was dropped at his gate when he was not home and that on 6/21/2026, Father notified Mother he was not properly served and was going to file a "motion to Quash Summons." Father's Declaration does not substantively respond to Mother's Request for Order.
- 6) Per the Proof of Service filed 6/24/2026, Father's Declaration was mailed to Mother on 6/23/2026.
- 7) Mother has not filed additional pleadings.

B. Findings and Order

- 1) The Court finds that Mother's moving papers were not served at least 16 Court days prior to the hearing as required by Code of Civil Procedure section 1005(b).
- 2) The hearing on Mother's Request for Order filed 5/1/2026 is hereby continued to **Thursday, 9/15/2026 at 9:00 AM in Dept. 404.**
- 3) No later than 7/17/2026, Mother shall file and serve (by mail is sufficient) a declaration which explains on what exact date she believes the duty to pay child support for Mya ended under Family Code section 3901. Mother shall also attach to her declaration a fully completed FL-157 (the version of this document attached to her Request for Order is incomplete).
- 4) Father shall file and serve his Responsive Declaration at least 9 Court days prior to the new hearing date. Father shall attach to his Responsive Declaration a fully completed FL-157.
- 5) Mother shall file and serve her Reply Declaration at least 5 Court days prior to the new hearing date.
- 6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BRANDON BAKHTIAR,

Petitioner

VS.

STEPHANIE MARIE EASTMAN,

Respondent

) Case Number: FDI-18-789193

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Brandon Bakhtiar (Father) and Respondent Stephanie Marie Eastman (Mother) have one child together, Shiloe Eastman Bakhtiar (DOB 2/17/2017, age 9).
- 2) On 3/3/2026, Mother filed a Request for Order (RFO) seeking to modify Father's parenting time. A summary of the proceedings related to this RFO is set forth in the Findings and Order After Hearing filed 6/1/2026??.
- 3) On 5/5/2026, the Court ordered a Tier II interview of Shiloe's therapist, and Family Court Services (FCS) interviewed therapist Sara Wagner, LMFT. Ms. Wagner reported that she sees Shiloe monthly for individual therapy and that Shiloe presents as "very engaged and emotionally mature for her age." Ms. Wagner reported that Shiloe wants to have more "say so' in the decision about visitation between her father and herself," and made it very clear to Ms. Wagner "that she prefers not to have visitation with her father."
- 4) Mother filed a Supplemental Declaration on 6/4/2026. She declared that Shiloe was upset when informed after the 5/5/2026 hearing that she would be required to visit Father on Tuesdays and

1 alternate Saturdays pursuant to the “step up” parenting plan. Mother declared that Father failed to
2 pick Shiloe up from school on 5/8, requiring Mother to make childcare arrangements on short
3 notice. Mother further alleged that “Father ‘s communications have continued to focus on his
4 disputes with me rather than Shiloe’s needs.”

5 5) Father filed a Supplemental Declaration on 6/8/2026 in which he attacked Mother’s credibility
6 and provided alternate accounts of specific issues raised by Mother.

7 6) On 6/16/2026, Judge Cindee Mayfield heard the parties’ requests and terminated Father’s
8 Tuesday visitation with Shiloe forthwith. The Court ordered that Father shall have parenting time
9 on the 2nd and 4th weekends of every month from Saturday 1PM (exchange inside the café inside
10 the Barnes and Noble in San Mateo) until Monday 8:20AM drop-off (or drop-off at camp, or
11 8:30AM exchange at the San Mateo Barnes and Noble café if school / camp is not in session. The
12 Court specified that the first weekend of the month is the first weekend in a calendar month that
13 contains a Saturday. The Court issued various other orders including an order for appointment of
14 minor’s counsel, subject to the approval of the supervising judge.

15 7) On 6/25/2026, Father filed an Income and Expense Declaration.

16 8) On 6/25/2026, Mother filed a Declaration with an FL-150 Income and Expense Declaration.

17 9) On 6/26/2026, Father filed a Declaration.

18 10) The Court has reviewed and considered the parties’ Income and Expense Declarations and
19 declarations.

20 **B. Findings and Orders**

21 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
22 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
23 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
24 children is the United States.

25 2) The Court hereby appoints minor’s counsel for the minor child Shiloe and finds the parties
26 qualify for grant funds for appointment of minor’s counsel. To give minor’s counsel sufficient
27 time to meet with Shiloe and prepare a recommendation and report, the matter is hereby
28 continued to **Thursday, 8/27/2026 at 9AM in Department 404**. At least 10 days before the next
29 hearing, both parties may file and serve brief update declarations (no longer than 5 pages

1 excluding exhibits) informing the Court how the parenting time schedule is going. In addition,
2 minor's counsel is hereby ordered to interview the minor child and prepare a pleading setting
3 forth counsel's findings and recommendations regarding custody and parenting time. Minor's
4 counsel shall file and serve this pleading at least 10 days before the next hearing.

5 3) All other orders not in conflict with these orders shall remain in full force and effect.

6 4) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESSICA EASTWOOD,	)	Case Number: FDI-24-800093
Petitioner	)	Hearing Date: June 30, 2026
VS.	)	Hearing Time: 9:00 AM
KARIM VEDOL,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER FOR CHILD SUPPORT, SPOUSAL SUPPORT, AND ATTORNEYS FEES
AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jessica Eastwood (Mother) and Respondent Karim Vedol (Father) married on 5/31/2016 and separated on 7/6/2024, for a marriage of 8 years and 1 month. The parties have one minor child, Levi (DOB: 2/28/2017, age 9). Mother is represented by attorney Don Emley. Father is represented by attorney Stuart Fishman.
- 2) On for hearing is Mother’s Request for Order filed 3/23/2026 wherein Mother seeks guideline child support and temporary guideline spousal support retroactive to 8/6/2024 (the date Mother filed her Petition for Dissolution) and \$35,000 in need-based attorney’s fees and costs (\$22,000 in fees incurred to date and \$13,000 in fees to be incurred through the conclusion of the case). Mother states she would be able to find work as a teacher or school counselor if it were not for her epilepsy which prevents her from working this field due to stress and memory issues. Mother states she has had two brain operations in the last year and her recovery period is expected to take up to a year and a half, at which time she hopes to return to full-time work as a teacher or school

counselor if her medical condition has improved. Mother states Father has been paying her \$1,000 per month in voluntary support since January 2025. Mother states Father earns more than \$300,000 per year and has significant assets.

3) On 3/23/2026, Mother's attorney Don Emley filed a declaration stating that Mother has incurred \$22,275 in fees to date for Mr. Emley to work on the case including multiple rounds of settlement negotiations. Mr. Emley believes Mother will incur a total of \$35,000 in this case through final settlement.

4) On 5/8/2026, Father filed a Responsive Declaration stating he consents to a guideline child support order and he has been paying Mother \$2,165 per month in child support since November 2025. Father also states he is willing to pay to Mother \$4,133 per month in guideline spousal support on a temporary basis; however, Father would also like the Court to order Mother to seek work and to issue a Gavron warning against her. Father states that if Mother can maintain 50% custody of Levi, she is capable of working more than she currently is. Father also states that he acknowledges Mother is entitled to some need-based attorney's fees; however, Mother never responded to his November 2025 settlement letter and refuses to take any positions outside of the ones she is taking in her Request for Order. Father requests \$6,200 in Family Code section 271 attorney's fees sanctions for Mother's attorney's failure to engage in good faith settlement discussions.

5) On 5/12/2026, Mother filed a Reply Declaration. Mother states that Father only increased voluntary support from \$1,000 to \$2,165 per month in April 2026, after she filed her Request for Order (but before it was served). Mother attached a letter from her neurologist which states she has a form of epilepsy that does not respond well to anti-seizure medication. Mother states she has been recommended to refrain from stressful work environments. Mother states "substitute teaching has worked fairly well for me, but the pay is low and the availability of work is inconsistent." Mother states that if Father "doubts the limits imposed by my medical condition, I welcome an Independent Medical Examination (IME) and/or a vocational assessment that incorporates the findings of an IME." Mother also states, "When my attorney first tried to discuss the issue with his counterpart, my fees and costs totaled \$9,973.70, and I was asking for a contribution from Karim of \$15,000 to finish the entire case, including that \$9,973.70. Now my

1 fees total more than \$30,000. Karim says he was ready to negotiate, but he didn't do that, and
2 rather than make a proposal to settle even this RFO, he has asked the Court to deny my request
3 for fees in its entirety and order me to pay his fees as a sanction under Family Code §271. That
4 does not signal good faith negotiations ahead. Unfortunately, I believe my estimate of \$35,000 in
5 fees and costs is likely to be insufficient to complete the case.”

6 6) On 5/12/2026, Mother’s attorney Don Emley filed a declaration. Mr. Emley states he had to piece
7 together Father’s earnings from prior years because Father failed to lodge the documents required
8 under Local Rule 11.7(A)(2)(e). Mr. Emley also states, “Counsel knew that Karim's previous
9 attorney ignored my requests regarding fees for ten months, and that in October of 2025, I'd
10 written to demand an answer to the question, noting that Jessica's fees had nearly doubled since
11 I'd first raised the issue. Yet when the comprehensive proposal referred to above was sent, Karim
12 proposed that ‘each party be responsible for their own fees and costs.’”

13 7) On 5/12/2026, Mother filed a Statement of Support Calculations.

14 8) On 5/14/2026, Father filed a Reply to Wife’s May 13, 2026 Reply Declaration. Father states that
15 five days before their upcoming hearing, Mother disclosed for the first time that her father has
16 “graciously suspended enforcement” of her rental obligations. Father asks to impute Mother with
17 the rental value of her current residence as untaxed income.

18 9) On 5/15/2026, Mother filed an Objection to Father’s Reply to Mother’s Reply and Motion to
19 Strike.

20 10) On 5/15/2026, Mother’s attorney Don Emley filed a declaration for attorney’s fees and costs
21 seeking \$650 in Family Code section 271 attorney’s fees sanctions for fees and costs incurred
22 related to Father’s reply to Mother’s reply.

23 11) On 5/19/2026, the Court adopted its Tentative Ruling without objection which: (a) denied
24 Mother’s request to strike Father’s Reply to Mother’s Reply, (b) denied Mother’s request for
25 sanctions related to that issue, and (c) continued the 5/19/2026 hearing to 6/30/2026 and ordered
26 the parties to submit further briefing on Mother’s ability to work as a substitute teacher, Mother’s
27 living situation, and whether Levi is in after-school care.

28 12) On 6/18/2026, Mother filed an Update Declaration. Mother states she is physically able to work
29 as a substitute teacher 84.5 hours per month during school-year months (mid-August through

early June), which averages out to approximately 70 hours per month across an entire year. Mother states the maximum number of hours that anyone could possibly work as a substitute teacher is 117 hours per month during the school year. Mother states that in reality the number of hours actually available to her is reduced due to availability of substitute teaching jobs and because it is best for her to only work substitute teaching assignments where she has a relationship with the staff and students and knows the commute and parking. However, Mother also states that she “certainly [does] not limit [her] opportunities.” Mother states the “day rate” at most schools is \$339.98 and a “day” is considered to be 6.5 hours, so this averages out to \$52.15 per hour. Mother therefore estimates her earning capacity to be \$52.15 per hour x 70 hours per month = \$3,650.55 per month. Mother also states that she lives in a two-bedroom apartment owned by her father. Her rent is \$2,150 per month and she also owes her father \$427 per month for a loan payment. Mother states she last paid her father \$2,577 (\$2,150 + \$427) in August 2024. Mother states that she received no support from Father after he “moved out” in July 2024 and then began receiving only \$1,000 per month in 2025. For this reason, Mother’s father agreed to “temporarily suspend” her rent and loan obligations but she needs to start paying rent and the loan payments again when Father begins paying sufficient support. Mother further states that Levi is in after-school programs which provide care for a total of five days per week.

13) On 6/24/2026, Father filed a Supplemental Declaration. Father states that he has paid Mother the following amounts in voluntary support since March 2026 (the month during which Mother filed her Request for Order): March 2026 (\$2,285.87), April 2026 (\$2,165), May 2026 (\$2,165), and June 2026 (\$2,165). Father asks that Mother’s earning capacity be considered when determining any temporary support award. Father also requests that all voluntary payments made between July 2024 through the present be considered in determining an order for child or spousal support.

B. Findings and Order

1) Mother’s request for a child and temporary support order retroactive to 8/6/2024 is denied. The Court will order support effective 3/23/2026 (the date Mother filed her Request for Order).

2) Base Child and Temporary Spousal Support

a. Effective 3/23/2026, in accordance with the XSpouse calculation attached hereto and incorporated herein, Father shall pay Mother base guideline child support of \$1,797 per

1 month and base guideline temporary spousal support of \$3,581 per month, for a total of
2 \$5,378 in base support per month. Base support shall be payable one-half by the 5th of
3 each month and one-half by the 20th of each month.

- 4 b. The Court finds that Father owes to Mother base child and temporary spousal support
5 arrears of \$1,561.35 for the period 3/23/2026 – 3/31/2026 and \$16,134.00 for the period
6 4/1/2026 – 6/30/2026, for total base support due of \$17,695.35 for the period 3/23/2026 –
7 6/30/2026. Between March 2026 and June 2026, Father paid Mother a total of \$8,780.87
8 in voluntary support. Father therefore owes to Mother base support arrears in the amount
9 of \$8,914.48. Commencing 7/20/2026, Father shall pay Mother an additional \$1,485.75
10 per month by the 20th of each month for 6 months until these arrears are satisfied.

11 3) Smith /Ostler Child and Temporary Spousal Support

- 12 a. Effective 3/23/2026, in addition to base child and temporary spousal support, Father shall
13 pay as additional Smith / Ostler child and temporary spousal support a portion of all
14 additional gross income (e.g., bonuses and vested RSUs) received in excess of his base
15 salary, pursuant to the Bonus Table attached hereto and incorporated herein. Smith /
16 Ostler child and spousal support shall be paid to Mother within 10 days of Father
17 receiving the additional income and he shall provide to Mother at the same time as
18 payment documentary evidence showing the amount of additional income received by
19 Father.
- 20 b. Effective 3/23/2026, Mother shall owe Father child and temporary spousal support credits
21 for any income she earns in excess of $\$3,651 \times 12 = \$43,812$ in gross earnings during a
22 calendar year in accordance with the Bonus Table attached hereto and incorporated
23 herein. No later than January 15th of each year (commencing 1/15/2027), Mother shall
24 provide to Father documentation showing her total earnings for the immediately prior
25 year and the parties shall determine whether Mother owes to Father any child and
26 temporary spousal support credits. The parties shall then meet and confer regarding how
27 Mother shall pay these child and temporary spousal support credits to Father.
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1 4) Child Support Add-Ons

- 2 a. After Father pays base support to Mother, Father will have 56% of the parties' combined
3 net spendable income and Mother will have 44% of the parties' combined net spendable
4 income.
- 5 b. Effective 3/23/2026, the parties shall share 56 / 44 the following expenses for Levi:
- 6 i. Childcare costs as those are defined in Family Code section 4062(a)(1);
- 7 ii. Reasonable uninsured healthcare costs as that term is used in Family Code
8 section 4062(a)(2);
- 9 iii. Mutually agreed upon extracurricular activity expenses (consent for participation
10 in an extracurricular activity shall not be unreasonably withheld).
- 11 c. The procedure for requesting and paying reimbursements for uninsured healthcare costs
12 shall be as set forth in Judicial Council Form FL-182.
- 13 d. The procedure for requesting and paying reimbursements for qualifying childcare costs
14 and extracurricular activities shall be as follows. When a party (e.g. Party A) pays for a
15 qualifying expense, within 30 days of paying the expense, Party A shall present to Party
16 B: (a) an itemized statement of charges, (b) proof of payment, and (c) the amount due and
17 owing from Party B. Within 10 days of receiving this information, Party B shall submit a
18 payment to Party A for Party B's share of the expense.
- 19 e. The parties shall exchange reimbursement claims for child support add-ons incurred
20 during the period 3/23/2026 – 6/30/2026 no later than 7/31/2026.

21 2) XSpouse Inputs

- 22 a. The inputs used in the XSpouse calculation are based on the following findings and
23 orders.
- 24 b. The Court finds good cause to impute to Mother \$3,651 per month based upon her
25 earning capacity. The Court finds that this imputation is in the best interest of Levi.
- 26 c. Based on the paystubs attached to Mother's Income and Expense Declaration, the Court
27 finds that approximately 10.25% is deducted for mandatory retirement. Therefore, if
28 Mother earned \$3,651 per month in gross wages, she would likely contribute
29 approximately \$374 per month in mandatory retirement.

- 1 d. Based on the paystubs attached to Mother's Income and Expense Declaration, the Court
2 finds that approximately 1.5% is deducted for union dues. Therefore, if Mother earned
3 \$3,651 per month in gross wages, she would likely contribute approximately \$55 per
4 month in union dues.
- 5 e. Father earns \$10,288.47 per biweekly pay period, which averages out to \$22,292 per
6 month.
- 7 f. Father reports a loss of approximately \$53 per month for self-employment income for his
8 businesses CritterPack, LLC and TotStep, LLC.
- 9 g. Father reported a loss of \$2,826 in 2025 (\$236 per month) for his rental property.
- 10 h. Father is paid \$150 every other biweekly pay period (\$162.50 per month) for "commuter"
11 and \$25 per biweekly pay period (\$54.17 per month) for "cell phone" and does not pay
12 federal taxes on these amounts. In addition, Father deducted \$13,439 in 2025 (\$1,120 per
13 month) for depreciation for his rental property. The Court finds good cause to include in
14 the XSpouse calculation a total of \$1,337 per month in nontaxable income.
- 15 i. Father contributes \$514.42 per biweekly pay period to his 401(k), which averages out to
16 \$1,115 per month.
- 17 j. \$321.65 is deducted from Father's biweekly pay for dental, health, and vision insurance,
18 which averages out to \$697 per month.

19 3) Attorney's Fees and Costs

- 20 a. After Father pays base support to Mother, Father will have 56% of the parties' combined
21 net spendable income (\$10,677 per month) and Mother will have 44% of the parties'
22 combined net spendable income (\$8,348 per month). Accordingly, Father has
23 approximately \$2,329 more in monthly net spendable income than Mother. Father also
24 receives substantial bonus income and RSU grants, only a percentage of which is payable
25 to Mother as Smith / Ostler support. Each party's monthly net spendable income exceeds
26 his or her estimated monthly expenses (excluding entertainment, gifts, and vacation
27 expenses). Father has \$7,569 in cash savings, \$23,600 in easily saleable investments, and
28 \$330,000 in real and personal property. Father reports debts totaling \$56,734. Mother has
29 \$5,846 in cash savings and \$117,045 in real and personal property. Mother reports debts

1 totaling \$9,517. The Court further notes that Father has been paying to Mother
2 significantly less than guideline child and temporary spousal support since the parties'
3 date of separation, and he has paid no Smith / Ostler support to Mother since separation.

- 4 b. The Court finds there is a significant disparity in access to funds to pay attorney's fees
5 and that Father has the ability to make a significant contribution toward Mother's
6 attorney's fees and costs. The Court finds good cause to award to Mother \$30,000 in
7 attorney's fees and costs, which the Court finds is a just, reasonable, and necessary
8 contribution. Father shall pay to Mother \$15,000 no later than 7/20/2026. Thereafter,
9 commencing 8/20/2026, Father shall pay to Mother \$5,000 by the 20th of each month for
10 3 months to satisfy the remainder.

- 11 4) Mother's attorney shall prepare the Findings and Order After Hearing, which shall include the
12 mandatory FL-342 form and the XSpouse calculation.

- 13 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
14 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
15 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
16 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
17 proposed order after hearing directly to the court. Failure to submit the order after hearing within
18 10 days may allow the other party to prepare a proposed order and submit it to the court in
19 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	0	1	2026			Guideline	Proposed
% time with NCP	49.99 %	0.00 %	GUIDELINE		Comb. net spendable	19025	19025
Filing status	HH/MLA	SINGLE	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Father		Father		
Wages+salary	22292	3651	16055		Payment cost/benefit	-5378	-5378
Self-employed income	-53	0	Mother		Net spendable income	10677	10677
Other taxable income	-236	0	Total		Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	56%	56%
Other nontaxble income	1337	0	Addons		% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS		Total taxes	6588	6588
401(k) employee contrib	1115	0	S.Clara SS		Dep. exemption value	0	0
Adjustments to income	0	0	Total		# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	12950	12950
CS paid prev marriage	0	0			Mother		
Health insurance	697	0			Payment cost/benefit	5378	5378
Other medical expense	0	0			Net spendable income	8348	8348
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	44%	44%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS		Total taxes	252	252
Qual bus income ded	0	0	SS		Dep. exemption value	0	0
Required union dues	0	55	Total		# withholding allowances	0	0
Mandatory retirement	0	374	Saving		Net wage paycheck	2900	2900
Hardship deduction	0 *	0 *	Releases				
Other GDL deductions	0	0					
Child care expenses	0	0					

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	49 - 51	0	0	0	Father	1797	Father	1797	Father
	49 - 51	0	0	0	Father	1797	Father	1797	Father

Annual Bonus Income Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father

Child Support			Spousal Support		Total CS	Total SS
Father's Bonus	% of bonus	\$	% of bonus	\$		(adjusted)
0	0.00	0	0.00	0	0	0
5,000	5.76	288	17.33	867	21,851	43,839
10,000	5.75	575	17.34	1,734	22,138	44,707
15,000	5.74	861	17.35	2,603	22,424	45,575
20,000	5.73	1,146	17.36	3,472	22,709	46,444
25,000	5.72	1,431	17.37	4,342	22,994	47,314
30,000	5.71	1,714	17.37	5,212	23,277	48,185
35,000	5.71	1,997	17.38	6,084	23,560	49,056
40,000	5.68	2,273	17.34	6,937	23,836	49,910
45,000	5.64	2,539	17.25	7,762	24,102	50,735
50,000	5.61	2,805	17.18	8,591	24,368	51,564
55,000	5.62	3,089	17.23	9,477	24,652	52,449
60,000	5.62	3,371	17.27	10,362	24,934	53,335
65,000	5.62	3,653	17.31	11,249	25,217	54,221
70,000	5.62	3,935	17.34	12,136	25,498	55,108
75,000	5.62	4,216	17.36	13,024	25,779	55,996
80,000	5.62	4,496	17.39	13,912	26,059	56,884
85,000	5.62	4,776	17.41	14,800	26,339	57,773
90,000	5.62	5,055	17.43	15,690	26,618	58,662
95,000	5.61	5,333	17.45	16,579	26,896	59,552
100,000	5.61	5,611	17.47	17,469	27,174	60,442
105,000	5.61	5,888	17.49	18,360	27,452	61,332
110,000	5.60	6,165	17.50	19,251	27,729	62,224
115,000	5.60	6,442	17.52	20,143	28,005	63,115
120,000	5.60	6,718	17.53	21,035	28,281	64,007
125,000	5.59	6,993	17.54	21,927	28,556	64,899
130,000	5.59	7,268	17.55	22,820	28,831	65,792
135,000	5.59	7,543	17.57	23,713	29,106	66,686
140,000	5.58	7,817	17.58	24,607	29,380	67,579
145,000	5.58	8,091	17.59	25,501	29,654	68,473
150,000	5.58	8,364	17.60	26,394	29,927	69,366
155,000	5.57	8,636	17.60	27,286	30,199	70,258
160,000	5.57	8,908	17.61	28,179	30,471	71,151
165,000	5.56	9,179	17.62	29,072	30,742	72,044
170,000	5.56	9,450	17.63	29,965	31,013	72,937
175,000	5.55	9,721	17.63	30,858	31,284	73,831
180,000	5.55	9,991	17.64	31,752	31,554	74,725
185,000	5.55	10,261	17.65	32,646	31,824	75,619
190,000	5.54	10,531	17.65	33,541	32,094	76,513
195,000	5.54	10,800	17.66	34,435	32,363	77,408
200,000	5.53	11,069	17.67	35,330	32,632	78,303
205,000	5.52	11,326	17.65	36,187	32,889	79,159
210,000	5.51	11,576	17.63	37,021	33,139	79,993
215,000	5.50	11,826	17.61	37,857	33,389	80,829
220,000	5.49	12,077	17.59	38,696	33,640	81,668

Annual Bonus Income Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father							
Child Support			Spousal Support			Total CS	Total SS (adjusted)
Father's Bonus	% of bonus	\$	% of bonus	\$			
225,000	5.48	12,328	17.57	39,535	33,891	82,507	
230,000	5.47	12,578	17.55	40,374	34,141	83,346	
235,000	5.46	12,828	17.54	41,213	34,391	84,186	
240,000	5.45	13,078	17.52	42,053	34,641	85,025	
245,000	5.44	13,327	17.51	42,893	34,891	85,865	
250,000	5.43	13,577	17.49	43,733	35,140	86,705	
255,000	5.42	13,826	17.48	44,573	35,389	87,545	
260,000	5.41	14,075	17.47	45,413	35,638	88,386	
265,000	5.40	14,301	17.42	46,176	35,864	89,148	
270,000	5.37	14,499	17.35	46,847	36,062	89,820	
275,000	5.34	14,698	17.28	47,518	36,261	90,491	
280,000	5.32	14,896	17.21	48,190	36,459	91,162	
285,000	5.30	15,094	17.14	48,861	36,657	91,834	
290,000	5.27	15,292	17.08	49,533	36,855	92,505	
295,000	5.25	15,486	17.01	50,191	37,049	93,164	
300,000	5.23	15,679	16.95	50,847	37,242	93,819	
305,000	5.20	15,872	16.89	51,502	37,435	94,475	
310,000	5.18	16,064	16.83	52,158	37,627	95,131	
315,000	5.16	16,257	16.77	52,814	37,820	95,787	
320,000	5.15	16,481	16.74	53,576	38,044	96,549	
325,000	5.15	16,723	16.74	54,402	38,286	97,375	
330,000	5.14	16,965	16.74	55,228	38,528	98,201	
335,000	5.14	17,207	16.73	56,055	38,770	99,027	
340,000	5.13	17,449	16.73	56,881	39,012	99,854	
345,000	5.13	17,690	16.73	57,708	39,253	100,680	
350,000	5.12	17,932	16.72	58,534	39,495	101,507	
355,000	5.12	18,173	16.72	59,361	39,736	102,334	
360,000	5.12	18,414	16.72	60,188	39,977	103,161	
365,000	5.11	18,655	16.72	61,015	40,218	103,988	
370,000	5.11	18,896	16.71	61,842	40,459	104,815	
375,000	5.10	19,137	16.71	62,670	40,700	105,642	
380,000	5.10	19,378	16.71	63,497	40,941	106,470	
385,000	5.10	19,618	16.71	64,325	41,181	107,297	
390,000	5.09	19,858	16.71	65,152	41,422	108,125	
395,000	5.09	20,099	16.70	65,980	41,662	108,953	
400,000	5.08	20,334	16.70	66,792	41,897	109,765	
405,000	5.08	20,570	16.69	67,604	42,133	110,576	
410,000	5.07	20,805	16.69	68,416	42,368	111,388	
415,000	5.07	21,040	16.68	69,228	42,603	112,200	
420,000	5.07	21,275	16.68	70,040	42,838	113,012	
425,000	5.06	21,505	16.67	70,836	43,068	113,808	
430,000	5.05	21,730	16.65	71,615	43,293	114,588	
435,000	5.05	21,956	16.64	72,395	43,519	115,368	
440,000	5.04	22,181	16.63	73,175	43,744	116,148	
445,000	5.04	22,406	16.62	73,955	43,969	116,928	

Annual Bonus Income Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father						Total CS	Total SS (adjusted)
Father's Bonus	Child Support % of bonus	\$	Spousal Support % of bonus	\$			
450,000	5.03	22,631	16.61	74,736		44,194	117,708
455,000	5.02	22,856	16.60	75,516		44,419	118,488
460,000	5.02	23,081	16.59	76,296		44,644	119,269
465,000	5.01	23,305	16.58	77,077		44,869	120,049
470,000	5.01	23,530	16.57	77,857		45,093	120,829
475,000	5.00	23,755	16.56	78,638		45,318	121,610
480,000	5.00	23,979	16.55	79,418		45,542	122,391
485,000	4.99	24,204	16.54	80,199		45,767	123,171
490,000	4.99	24,428	16.53	80,980		45,991	123,952
495,000	4.98	24,652	16.52	81,761		46,215	124,733
500,000	4.98	24,876	16.51	82,541		46,439	125,514

Annual Bonus Income Mother

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Father: 0
Prior relationship(s): OFF

Additional Cost to Mother

Mother's Bonus	Child Support		Spousal Support		Total CS		Total SS (adjusted)	
	% of bonus	\$	% of bonus	\$				
0	0.00	0	0.00	0	0	R	0	R
5,000	10.30	515	20.69	1,034	21,048	R	41,938	R
10,000	10.75	1,075	21.81	2,181	20,488	R	40,792	R
15,000	11.26	1,690	23.10	3,465	19,873	R	39,508	R
20,000	11.43	2,286	23.68	4,736	19,277	R	38,237	R
25,000	11.54	2,885	24.14	6,035	18,678	R	36,938	R
30,000	11.41	3,422	24.07	7,222	18,141	R	35,750	R
35,000	11.19	3,916	23.80	8,331	17,647	R	34,641	R
40,000	10.97	4,387	23.51	9,405	17,176	R	33,567	R
45,000	10.77	4,848	23.26	10,468	16,715	R	32,504	R
50,000	10.60	5,300	23.06	11,528	16,263	R	31,445	R
55,000	10.45	5,749	22.89	12,591	15,814	R	30,382	R
60,000	10.32	6,194	22.76	13,658	15,370	R	29,315	R
65,000	10.21	6,634	22.66	14,728	14,929	R	28,245	R
70,000	10.10	7,071	22.57	15,801	14,492	R	27,171	R
75,000	10.01	7,504	22.50	16,878	14,059	R	26,094	R
80,000	9.92	7,934	22.45	17,958	13,629	R	25,014	R
85,000	9.83	8,353	22.38	19,023	13,210	R	23,949	R
90,000	9.74	8,762	22.30	20,073	12,801	R	22,900	R
95,000	9.65	9,168	22.24	21,125	12,395	R	21,847	R
100,000	9.57	9,571	22.18	22,180	11,992	R	20,792	R
105,000	9.50	9,972	22.13	23,237	11,592	R	19,735	R
110,000	9.43	10,369	22.09	24,297	11,194	R	18,675	R
115,000	9.36	10,764	22.05	25,360	10,799	R	17,613	R
120,000	9.30	11,156	22.02	26,424	10,407	R	16,548	R
125,000	9.24	11,546	21.99	27,491	10,017	R	15,481	R
130,000	9.18	11,934	21.97	28,560	9,630	R	14,412	R
135,000	9.12	12,319	21.95	29,632	9,245	R	13,341	R
140,000	9.07	12,701	21.93	30,705	8,862	R	12,268	R
145,000	9.05	13,117	21.99	31,880	8,446	R	11,093	R
150,000	9.02	13,535	22.05	33,073	8,028	R	9,899	R
155,000	9.00	13,951	22.11	34,269	7,612	R	8,704	R
160,000	8.98	14,360	22.16	35,454	7,203	R	7,519	R
165,000	8.93	14,737	22.15	36,553	6,826	R	6,419	R
170,000	8.90	15,125	22.17	37,692	6,438	R	5,280	R
175,000	8.86	15,510	22.19	38,833	6,053	R	4,140	R
180,000	8.83	15,893	22.21	39,975	5,670	R	2,997	R
185,000	8.77	16,233	22.16	40,992	5,331	R	1,980	R
190,000	8.72	16,568	22.11	42,002	4,996	R	970	R
195,000	8.67	16,901	22.04	42,972	4,662	R	0	
200,000	8.62	17,233	21.49	42,972	4,330	R	0	

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER WEI CHENG,

Petitioner

VS.

TOM YEY,

Respondent

) Case Number: FDI-25-801487

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: BIFURCATE AND TERMINATE MARITAL STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jennifer Wei Cheng (Mother) and Respondent Tom Yeh (Father) married on 11/3/2003. Mother contends the parties separated on 12/20/2020, for a marriage of 16 years and 1 month. Father contends the parties separated on 5/16/2025, for a marriage of 21 years and 6 months. The parties have two minor children, Hampton (DOB: 11/22/2008, age 17) and Harrington (DOB: 8/28/2010). Mother is represented by attorney Leon Jew. Father is self-represented.
- 2) On for hearing is Mother's Request for Order filed 2/17/2026 asking the Court to bifurcate and terminate the parties' marital status. The Court notes that in the Request for Separate Trial (FL-315) attached to her Request for Order, Mother included no information under the prompt, "All pension or retirement plans in which the community has an interest are listed below or on attachment 1e(2)." However, the Court also notes that on 9/29/2025, Mother filed a Response to Father's Request for Form Interrogatories, Set One. Mother attached to this pleading a Schedule of Assets and Debts signed by Mother under penalty of perjury which only lists the following

1 items under the section for “retirement and pensions”: Madison IRA (“SP”) and Madison Roth
2 (“SP”). Mother also stated in this pleading that tax returns for 2023 and 2024 “were not filed yet
3 due to Asking Party’s lack of cooperation to fully disclose his income.”

4 3) On 2/25/2026, Mother filed a Supplemental Declaration stating she would like her former name
5 restored to “Jennifer Wei Cheng.”

6 4) On 4/9/2026, Father filed a Responsive Declaration asking the Court to deny Mother’s request.
7 Father states Mother has “never produced any tax returns, paystubs, or account statements
8 required for the Preliminary Declaration of Disclosure.” Father also states, “Petitioner lists 2
9 pensions in her Schedule of Assets & Debts and has not joined those plans to this action. I request
10 that they be joined and that I be named beneficiary of both plans.” Father further states,
11 “Respondent to be assigned & granted a 50% interest in Petitioner’s Madison IRA & Madison
12 Roth (listed on Petitioner’s Schedule of Assets & Debts dated 7/21/2025).” Father also asks the
13 Court to order Mother to “restore and pay for Respondent’s health insurance,” and order Mother
14 to “return to my mother the property described in my supporting Declaration. Petitioner does not
15 deny this property belongs to my mother.” The Court notes that although Father references a
16 supporting declaration in his Responsive Declaration, no supporting declaration is attached to
17 Father’s Responsive Declaration nor was a supporting declaration separately filed.

18 5) At the prior 4/16/2026 hearing, the Court set a future hearing date of 6/30/2026 and ordered
19 Mother to file and serve: (a) an updated Request for Separate Trial (FL-315) which lists any and
20 all pension or retirement plans in which the community has an interest or which states “none,” (b)
21 an updated Schedule of Assets and Debts (FL-142) which includes as an attachment the latest
22 statements for each financial account included, and (c) an updated Income and Expense
23 Declaration (FL-150) which includes as an attachment Mother’s last two months of paystubs.

24 6) On 6/15/2026, Mother filed and served an update declaration, an updated Income and Expense
25 Declaration, an updated Declaration Regarding Service of Preliminary Declaration of Disclosure,
26 and proofs of service indicating service of these documents on Father. Mother states that she has
27 “available statements for some financial accounts.” Mother states that Father has not produced his
28 financial disclosures or responded to her requests for discovery.
29

1 7) On 6/23/2026, Father filed a Declaration stating that he still has incomplete information regarding
2 Mother's income and assets and that the parties' date of separation remains in dispute. Father
3 states, "The Court previously considered Petitioner's request for bifurcation and determined that
4 additional disclosure was required before such relief should be granted. Petitioner now asks the
5 Court to grant the same relief while the ordered disclosure process remains materially incomplete.
6 Granting bifurcation under these circumstances would effectively reward incomplete compliance
7 and deprive me of information necessary to protect my rights regarding property characterization,
8 tax liabilities, retirement assets, digital assets, reimbursement claims, and the disputed date of
9 separation." Father asks the Court to make the following orders:

- 10 a. Deny the request without prejudice or continue it for approximately 30 days and
11 direct Mother to serve, within 10 days, the following limited materials necessary to
12 complete the disclosure record and frame appropriate protective orders:
- 13 i. A rental schedule for each income-producing property showing gross
14 receipts, cash expenses, debt service, and net income;
 - 15 ii. Two years of profit-and-loss statements for each self-employed business,
16 or the applicable Schedule C from the latest filed return, together with
17 identification of the business producing the income reported on FL-150;
 - 18 iii. A written identification of each federal and state tax year filed or unfiled
19 since 2022, copies of all returns filed within the applicable disclosure
20 period, and records sufficient to explain the disclosed 2023 Franchise
21 Tax Board liability;
 - 22 iv. Current complete statements, account-opening applications, initial-
23 funding records, Forms 5498 and 1099-R, and reasonably available
24 contribution, rollover, transfer, transaction-history, and tracing records
25 for the Madison IRA, Madison Roth IRA, Fidelity, Coinbase, Kraken,
26 Prana Trust, and each other account for which separate-property status is
27 asserted; and
28
29

v. A complete list of all retirement plans and IRAs, current balances, plan administrators or custodians, and beneficiary designations, so the Court can determine joinder and provisional-order requirements.

b. If the Court grants bifurcation now, the Court should enter a written order, including Judicial Council forms FL-347 and FL-348 where applicable, that:

- i. Makes no finding concerning the date of separation or the character, value, ownership, tracing, reimbursement, or division of any asset or debt, and expressly reserves all remaining issues;
- ii. Provides the tax indemnity, health-insurance, retirement, Social Security, beneficiary, probate, individual-retirement-account, and enforcement protections authorized by Family Code section 2337;
- iii. Preserves and secures each party's disputed community interest in retirement, brokerage, digital-asset, trust, and other financial accounts pending final adjudication;
- iv. Prohibits sale, transfer, refinance, further encumbrance, or disposition of 2225 Rivera Street and 18792 Galton Lane, or distribution of proceeds relating to those properties, absent written agreement or further court order; and
- v. Requires Petitioner, as the moving party, to prepare, serve, and lodge the proposed status judgment and all protective orders for review before entry.

B. Findings and Order

- 1) The Court finds good cause to continue the hearing on Mother's Request for Order filed 2/17/2026 a second time, to **Thursday, 9/3/2026 at 9:00 AM in Dept. 404.**
- 2) At least 20 calendar days prior to the next hearing date, Mother shall file and serve a declaration to which attaches an updated Request for Separate Trial (FL-315) which lists any and all pension or retirement plans in which the community has an interest. If Mother contends the community has no interest in any pensions or retirement plans, she may write "none." Mother's declaration must also include a list of statements she was not able to include with her second declaration of

1 disclosure, as Mother stated her second disclosure contained available statements for some (but
2 not all) financial accounts. If those statements become available to Mother prior to the next
3 hearing date, Mother shall have those additional statements served on Father.

4 3) At least 20 calendar days prior to the next hearing date, Mother shall also file and serve an
5 updated Income and Expense Declaration which includes as attachments:

6 a. A schedule showing gross receipts less cash expenses for each piece of rental property;

7 b. A profit and loss statement for the last two years or a Schedule C from Mother's last
8 federal tax return for her business.

9 4) All other requests for documents requested by Father are denied as the Court does not find that
10 those documents are required to be served as part of Mother's Preliminary Declaration of
11 Disclosure under Family Code section 2104, and therefore those documents are not required to be
12 served before the Court can bifurcate and terminate marital status under Family Code section
13 2337(b). If Mother does not provide the additional requested information to Father voluntarily,
14 Father may serve discovery requests.

15 5) At least 10 calendar days prior to the next hearing date, Father may file and serve another update
16 declaration.

17 6) Mother's attorney shall prepare the Findings and Order After Hearing.

18 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
19 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
20 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
21 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
22 proposed order after hearing directly to the court. Failure to submit the order after hearing within
23 10 days may allow the other party to prepare a proposed order and submit it to the court in
24 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EHSAN HAMIDI,

Petitioner

VS.

ALLISON PAZ,

Respondent

) Case Number: FDI-25-801833

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: CONSOLIDATE WITH FDV CASE; REQUEST FOR ORDER
TEMPORARY EMERGENCY ORDER, PROPERTY CONTROL, CONSOLIDATE WITH FDV CASE,
BUYOUT FAMILY RESIDENCE, OR OST

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Ehsan Hamidi (Father) and Respondent Allison Paz (Mother) married on 5/12/2023
and separated on 7/20/2025, for a marriage of 2 years and 2 months. The parties have one minor
child, Esther (DOB: 8/16/2023, age 2). Mother is represented by attorneys Stacey Poole and
Nancy Nugent.
- 2) On 7/23/2025 in related Case No. FDV-25-818545, Mother filed a Request for Domestic
Violence Restraining Order (DVRO) seeking protection for herself and the parties' daughter
against Father.
- 3) Per the Stipulation and Order filed 12/8/2025 in Case No. FDV-25-818545 which includes the
following orders:
 - a. Neither party shall solicit or initiate in-person contact with the other party.

- b. The parties shall share joint legal and physical custody of Esther based on a 2-2-3 schedule.
 - c. The parties shall select a mutually agreed-upon child custody mediator to assist in developing a comprehensive parenting plan including a long-term parenting schedule.
 - d. Mother shall continue to have exclusive use of the real property located at 3019 Broderick St. San Francisco, CA 94123 (“marital residence”) until 4/1/2026 and the parties will meet and confer regarding the disposition of the marital residence. If the parties have not reached a mutual agreement as to who will buy out the other party’s interest in the marital residence by 4/1/2026, the parties shall proceed with listing the house for sale and shall further meet and confer regarding the terms and process of such sale.
 - e. Father shall continue to pay the carrying costs of the marital residence pending further written agreement of the parties or court order.
 - f. Mother’s Request for a DVRO shall be dismissed without prejudice.
- 4) On for hearing is Mother’s Request for Order filed 4/24/2026 asking the Court to grant her temporary exclusive use, possession, and control of the marital residence pending its sale and to consolidate the FDI case with the related FDV case.
- 5) On 5/12/2026, Mother filed an ex parte Request for Order stating that she presented a buyout offer to Father on 3/31/2026 (after delays caused by her appraiser) for the marital residence which includes reimbursement to Father for his claimed Family Code section 2640 separate property contribution to the property. Mother asks the Court to order:
- a. Mother be allowed to buy out Father of the Broderick Residence for \$680,616 and Mother will agree to a reasonable deadline for her to pay this amount to Father;
 - b. An order shortening time for a hearing if the Court is not inclined to order the buyout at the ex parte hearing and allow Mother to continue to reside in the residence until the hearing; OR
 - c. A judicial settlement conference to obtain judicial assistance to a settlement on this issue.
- 6) On 5/12/2026, Father filed a Responsive Declaration asking the Court to make the following orders:

- a. Deny any request by Mother to force the sale of the property under her proposed terms;
 - b. The parties to proceed with the two listing agents selected by the parties and that the family residence be staged and listed for sale forthwith;
 - c. Order Mother to vacate the property by May 31, 2026 so that the parties can stage the property and list it for sale or order a specific move-out date which the Court feels would be reasonable under the circumstances
 - d. Take Judicial Notice under California Evidence Code Section 452 (Court Records/Verifiable Facts) and Section 453, of Mother's Declaration and acknowledgement made under penalty of perjury in her declaration of Father's FC Section 2640 reimbursement claims in the amount of \$552,237 for Father's separate property portion of the community property residence and order that amount be credited towards Father's equity when the property ultimately sells.
- 7) Per the Temporary Emergency (Ex Parte) Orders filed on 5/12/2026, the Court denied both parties' requests pending a hearing set for 6/30/2026. The Court ordered the parties to file and serve update declarations at least 10 days before the 6/30/2026 hearing informing the Court of any new developments regarding the residence. The Court also consolidated the FDV case into and under the FDI case.
- 8) On 6/22/2026, Mother filed a Supplemental Declaration. Mother states all parties signed a Stipulation stating that if the marital residence is sold, all net proceeds from the sale of the marital residence will remain in a blocked account and inaccessible to either party absent further court order. Mother states that the parties agreed to use two listing agents, one of Father's choosing and one of Mother's choosing Mother also states, "At a Status Conference on June 1, 2026, the Court indicated that it expected both parties to abide by the December 8, 2025 stipulation, and meet and confer regarding the house listing. At the Status Conference, the Court also indicated that it would not make any orders as to the listing, my moving out, or any other issues because the Court had no information from the listing agents as to what work would be necessary to ready the house for sale, what differing opinions the agents may have on listing price or date, or any other relevant information. The Court did order that I make the house available to Ehsan's agent to tour the home." Mother states that, to date, she has not received a request from Father's agent to tour

1 the residence and her agent has not heard from Father's agent to meet and confer regarding listing
2 prices, listing date, work necessary to prepare the home for sale, etc. Mother states that she does
3 not know why Father and his agent have "gone silent." Mother further states, "Given there has
4 been no movement from Ehsan or his realtor, I do not believe there is any further action the Court
5 needs to take at this time related to the May 12, 2026 RFO or sale of the house as there are no
6 disputes on that issue at this time."

7 9) Father did not file an Update Declaration.

8 **B. Findings and Order**

9 1) As Mother indicates there are currently no disputed issues regarding the marital residence, and
10 Father has not filed an Update Declaration, the Court makes no additional orders at this time.

11 2) The relief requested in Mother's Request for Order filed 4/24/2026, her ex parte Request for
12 Order filed 5/12/2026, and Father's Responsive Declaration filed 5/12/2026 is denied without
13 prejudice.

14 3) Mother's attorney shall prepare the Findings and Order After Hearing.

15 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
16 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
17 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
18 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
19 proposed order after hearing directly to the court. Failure to submit the order after hearing within
20 10 days may allow the other party to prepare a proposed order and submit it to the court in
21 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALANA CONNER,

Petitioner

VS.

HOWARD ROSE,

Respondent

) Case Number: FDI-26-802409

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

TO SELECT AND APPOINT AN APPRAISER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Alana Conner (Wife) and Respondent Howard Rose (Husband) married on 2/5/2020 and separated on 12/15/2025, for a marriage of 5 years and 10 months. The parties have no minor children. Wife is represented by attorney Amrit Kullar of the Lewellen Family Law Group. Husband is self-represented.
- 2) On for hearing is Wife's Request for Order filed 3/20/2026. Wife states she has made good faith efforts to settle the issues in the parties' case since their date of separation. Wife states the primary issue remaining is the disposition of the marital residence located at 31 Navajo Ave. in San Francisco. Wife states the parties agreed to obtain a neutral third-party appraisal to determine the value of the property. After the appraisal was completed, Husband then refused to accept it and has sent aggressive communications to Wife stating he is not required to agree to a buyout and that Wife needs to accept a higher value. Wife asks the Court to:

- a. Grant Wife the right to buy out Husband's Navajo Ave. residence at the fair market value as of the date of separation based on the existing appraisal or another Court-ordered neutral third-party appraisal tied to the date of separation;
 - b. Order Husband to cooperate in all steps necessary to effectuate the buyout, including execution of all required documents;
 - c. Order the property to be immediately listed for sale with a Court-appointed real estate agent if a buyout is not completed within a time certain set by the Court;
 - d. Order both parties to cooperate with the listing and sale of the property including reasonable access, preparation, and execution of all necessary documents; and
 - e. Set a timeline for completion of the buyout or sale to ensure prompt resolution.
- 3) Also on for hearing is Husband's Request for Order originally filed as an ex parte request on 4/10/2026. Husband states that while Wife is seeking a Court-ordered buyout, she is blocking Husband's right to obtain an independent valuation of the home. Husband states he is currently residing in Washington state. Husband states he contacted Wife to arrange a time to retrieve his belongings from the Navajo Ave. property, but Wife wants to move items that she deems his into a single room and forbid his access to other areas unless he hires and pays for a "licensed and insured professional service provider" to act as an observer. Husband states he was able to arrange a time to meet at the residence, but Wife hired third-party observer to monitor his movements and restrict him from accessing the stairwell or the main floor. Husband asks the Court to:
- a. Grant Husband access to all shared and common areas of the Navajo Ave. property including but not limited to the kitchen, living areas, dining rooms, garage, laundry facilities, bathrooms, and all outdoor spaces;
 - b. Prohibit Wife from designating or recharacterizing any common or shared areas as private or personal space for the purpose of denying Court-ordered access;
 - c. Permit Husband to give access to the home to up to three licensed real estate agents of Husband's choosing to perform a walkthrough of no more than 60 minutes with 48 hours' notice via text and email;

- d. Grant Husband unrestricted access to the entire residence for the purpose of identifying and removing his sole and separate property and permit Husband to remove property with 48 hours' notice via text and email;
 - e. Prohibit Wife from obstructing Husband's entry or removal of items during the noticed periods;
 - f. Husband to provide Wife with a fully copy of any written valuation estimates or reports within 48 hours of Husband's receipt.
- 4) On 4/8/2026, Wife filed a Responsive Declaration. Wife states there is no urgency for Husband's requests and she already put at issue the additional valuation of the property in her 3/20/2026 Request for Order. Wife states that Husband was able to remove a portion of his personal belongings. Wife states she was not present while Husband was there and, in her absence, she hired a licensed private investigator to act as a neutral observer who did not position himself on or near either staircase and did not physically or otherwise obstruct access to any area. Wife also states Husband did not attempt to access the upstairs during the retrieval. Wife also states that Husband participated in the previously performed appraisal. Wife states that multiple walkthroughs for additional valuations is excessive and introduce inconsistent and potentially biased valuation inputs.
- 5) On 4/8/2026, Wife's attorney filed a declaration stating that Husband improperly served his ex parte Request for Order directly on Wife even though Wife's attorney notified Husband that she is now represented by counsel.
- 6) Per the Temporary Emergency (Ex Parte) Orders filed 4/10/2026, the Court granted the following orders. The Court also set Husband's Request for Order filed 4/10/2026 for hearing on shortened time for 5/5/2026.
- a. VALUATION ACCESS: Respondent and his agents (including licensed real estate professionals) shall have unrestricted access to the interior and exterior of the residence for the purpose of valuation and appraisal.
 - b. NOTICE REQUIREMENT: Respondent shall provide Petitioner with 48 hours' written notice (via email or text) prior to any scheduled access.

- c. PROPERTY RETRIEVAL: Respondent is authorized to enter the residence to retrieve his personal property, professional records, electronics, and instruments during any noticed valuation period.
- d. NO INTERFERENCE: Petitioner is prohibited from obstructing entry, changing access codes without notice, or requiring Respondent to pay for third-party observers (such as private security) as a condition of entry.
- e. UNOBSTRUCTED ACCESS: Petitioner is prohibited from changing gate codes, door codes, or locks to the residence at 31 Navajo Ave without providing Respondent the new codes/keys at least 48 hours in advance of any noticed access.
- f. NO THIRD-PARTY REQUIREMENTS: Petitioner is prohibited from requiring Respondent to pay for or coordinate with third-party "observers," private security, or "guards" as a condition of entry.
- g. NON-INTERFERENCE: Petitioner shall not interfere with, harass, or follow Respondent or his agents while they are on the premises for the court-ordered purposes of valuation and property retrieval.

7) On 4/21/2026, Husband filed a Responsive Declaration to Wife's 3/20/2026 Request for Order. Husband states that Wife's attorney unilaterally increased the "previously observed 48-hour noticed period... to 72 hours," which led Husband to miss the deadline to file his tax returns. Husband states Petitioner has hired guards to prevent him from viewing the current state of the home, inventorying community property, and locating or retrieving his personal property situated throughout the house. Husband states Wife has taped off specific areas within the shared garage and common spaces. Husband states Wife's hired guards monitor and report his movements to Wife in real time. Husband asks the Court to:

- a. Order Wife to immediately cease the use of hired guards, observers, or monitors to oversee, record, or restrict Husband's access to the property;
- b. Grant Husband access to the entire residence (excluding Wife's private bedroom) to retrieve personal property and inventory community assets upon 48 hours' notice provided via email and/or text;

- c. If the Court declines to order an immediate sale, grant Husband access to up to three (3) licensed real estate agents of his choosing to perform interior and exterior evaluations for the purpose of establishing a neutral fair market value, with each visit limited to a duration of 60 minutes;
- d. Order Wife not to obstruct, "tape off," or otherwise interfere with Husband's access to any portion of the residence or lot (excluding Wife's private bedroom) during scheduled visits.
- e. Husband to provide Wife with copies of any resulting valuation reports ("CMAs or appraisals") within 48 hours of Husband's receipt of said documents.

8) On 4/21/2026, Husband filed a Supplemental Declaration which contains identical allegations and requests as his Responsive Declaration but includes additional exhibits.

9) At the prior 5/5/2026 hearing date, the Court adopted its Tentative Ruling without objection (see Findings and Order After Hearing filed 5/12/2026) and made orders regarding the parties' access to the Navajo Ave. residence and ability to retrieve belongings. The Court stated it intended to appoint a real estate professional as the Court's Evidence Code section 730 expert to appraise the present-day value of the Navajo Ave. residence under Family Code section 2552. The Court ordered each party to meet and confer regarding the selection of an appraiser, set a future hearing date of 6/30/2026, and ordered the parties to file and serve a declaration at least 5 days in advance of the 6/30/2026 hearing with their proposed appraiser if the parties could not reach an agreement. The Court also set a future hearing date of 8/6/2026 to review the parties' positions regarding the appraisal and whether they intend to accept or challenge it.

B. Findings and Order After Hearing

- 1) There have been no pleadings filed since the prior 5/5/2026 hearing date. As the Court only required the parties to file and serve declarations if they were unable to reach an agreement regarding an appraiser, the Court assumes that an appraiser was selected.
- 2) The 8/6/2026 hearing remains on calendar to review the parties' positions regarding the appraisal and whether they intend to accept or challenge it.

- 3) At least 10 calendar days prior to the 8/6/2026 hearing date, both parties shall file and serve declarations (not to exceed 5 pages, not including exhibits) providing any material updates to the Court.
- 4) Wife's attorney shall prepare the Findings and Order After Hearing.
- 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KARISHMA BERY,

Petitioner

VS.

PARAKRAM KHANDPUR,

Respondent

) Case Number: FDV-25-818787

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 6/30/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Karishma Bery (Mother) and Respondent Parakram Khandpur (Father) have one minor child together, M.B. (DOB: 12/6/2016, age 9).
- 2) On 12/10/2025, Mother filed a request for Domestic Violence Restraining Order (DVRO). On 12/24/2025, the Court granted a Temporary Restraining Order (TRO) against Father with Mother and M.B. as protected parties. The TRO expires on 7/16/2026.
- 3) On 12/24/2025, the Court filed a Stipulation and Order wherein the parties agreed to amend the TRO, continue using Talking Parents for brief and peaceful contact regarding Father's parenting time, and set forth Father's parenting time with M.B., as follows: Commencing 12/27/2025, Father shall have every Saturday from 10AM to 6PM (with one exception for 1/17/2026); commencing 1/7/2026, Father shall have M.B. every Wednesday after school until 8:30PM and

1 ensure M.B. completes her homework while in his care; on Wednesdays, Father shall pick up the
2 vehicle by 3PM to pick M.B. up from school; Father shall provide proof of completion of his
3 Positive Parenting Program (Triple P) and Open Path Collective's 12-hour Anger Management
4 Course by 1/5/2026.

5 4) On for hearing is Father's 4/14/2026 Request for Order seeking joint legal and physical custody.

6 5) At a 4/15/2026 hearing on Mother's DVRO request, the Court set the domestic violence matter
7 for trial on 7/15/2026 and 7/16/2026 at 1:45PM in Dept. 404.

8 6) On 5/18/2026, the Court ordered both parties to attend orientation and mediation with Family
9 Court Services and set a hearing for 6/30/2026 at 9AM in Department 404 in case no agreement
10 was reached in mediation.

11 7) On 5/19/2026, both parties attended mediation and were unable to reach an agreement.

12 8) On 6/22/2026, Mother filed a Responsive Declaration to Father's 4/14/2026 Request for Order.

13 9) On 6/23/2026, Father filed two witness declarations in support of his 4/14/2026 Request for
14 Order as well as a Reply Declaration.

15 **B. Findings and Orders**

16 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
17 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
18 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
19 child is the United States.

20 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 6/30/2026 in**
21 **Department 404.**
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